

26STCV07514 26STCV07514

County: los-angeles

Division: Civil Law and Motion

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Case Number: 26STCV07514 Hearing Date: August 10, 2026 Dept: 516

JUDGE JAMES I. MONTGOMERY

DEPARTMENT 516

Hearing Date: August 10, 2026

Case Name: Mesriani Law Group v. Merus, Inc.

Case No.: 26STCV07514

Matter: Application to be Admitted Pro Hac Vice

Moving Party: Defendants Merus Case, LLC and LegalTech, LLC

Responding Party: None

Tentative Ruling: The Application to be admitted pro hac vice is denied.

Defendants Merus Case, LLC and LegalTech, LLC, apply for an order granting David F. Pustilnik admission to appear pro hac vice on its behalf. The application is unopposed.

Legal Standard

An attorney in good standing in another jurisdiction may apply to appear as counsel pro hac vice in the State of California by filing a verified application together with proof of service by mail of a copy of the application and notice of hearing on all parties who have appeared in the case and on the State Bar of California at its San Francisco office, with payment of a \$600.00 fee. The attorney cannot be a resident of California, employed in the state, or regularly engage in substantial business, professional, or other activities in the state. (Cal. Rules of Court, rule 9.40(a)(1)-(3), (c)(1).)

The written application must state: (1) the applicant's residence and office address; (2) the courts to which the applicant has been admitted to practice and the dates of admission; (3) that the applicant is a member in good standing in those courts; (4) that the applicant is not currently suspended or disbarred in any court; (5) the title of each court and cause in which the applicant has filed an application to appear as counsel pro hac vice in this state in the preceding two years, the date of each application, and whether or not it was granted; and (6) the name, address, and telephone number of the active member of the State Bar of California who is attorney of record in the local action. (Cal. Rules of Court, rule 9.40(d)(1)-(6).)2

Analysis

David F. Pustilnik ("Counsel") represents that he is not regularly engaged in substantial business, professional, or other activities in California. (Pustilnik Decl., ¶ 6.) He also states that he is not suspended or disbarred in any court. (Id., ¶ 5.) Counsel's application also states that he has applied for pro hac vice admission in California in the last two years, twice, and been admitted twice. (Id., ¶ 7.)

"Rule 9.40 of the California Rules of Court creates a limited exception to this general rule by allowing attorneys from another jurisdiction who are not licensed to practice law in California to apply for court permission to participate as counsel in a particular case as long as the client has also retained a California lawyer." (Big Lots Stores, Inc. v. Superior Court (2020) 57 Cal.App.5th 773, 778–779.)

Counsel contends that the associated counsel on this case is P. Renée Wicklund (State Bar No. 196167). (Pustilnik Decl., ¶ 8.) However, two issues arise. First, P. Renée Wicklund contends that her Bar Number is 200588. (Wicklund Decl., 8:3.) Second, P. Renée Wicklund is not eligible to practice law according to the California State Bar website.

Thus, Counsel's application does not meet the requirements under California Rules of Court, rule 9.40(a).

Conclusion

The Court denies the Application of counsel, David F. Pustilnik, to appear on behalf of Defendants Merus Case, LLC and LegalTech, LLC.